

January 26, 2026 Truckee Civil Law & Motion Tentative Rulings

1. CL0003210 WELLS FARGO BANK, NA vs. MARTIN B BARRON JR, an individual

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for almost five (5) months and a declaration re non-service was filed on October 7, 2025. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the trial date set for May 15, 2026 at 11:00 a.m.

2. CL0002502 WELLS FARGO BANK, N.A. vs. JAMIE LAMOUREUX, an individual

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to file a request for default judgment despite the fact default was entered as requested over three (3) months ago. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420.

3. CL0002625 Absolute Resolutions Investments LLC vs. Jamie Lamoureux

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to file a request for default/default judgment despite the fact Defendant was served with the Summons and Complaint over eight (8) months ago. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420.

4. CL0003244 JPMORGAN CHASE BANK, N.A. vs. Dolores Corona

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for almost five (5) months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the trial date set for May 15, 2026 at 11:00 a.m.

5. CU0000657 Daniel Botwinis vs. Patrice Fleming et al

Defendants' Coldwell Banker Real Estate, LLC; NRT West Inc.; Alan Nicholls; Kirstin Wilson; and Pilar Zolezzi Rioja ("CB Defendants") unopposed motion for summary adjudication as to the causes of action for intentional tort (battery) and claim for punitive damages against the CB Defendants is granted.

Legal Standard